

HOUSE BILL 2235

By Dixie

AN ACT to amend Tennessee Code Annotated, Title 4,
Chapter 21 and Title 66, relative to housing
discrimination.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. This act is known and may be cited as the "Tennessee Fair Chance
Housing Act."

SECTION 2. Tennessee Code Annotated, Title 4, Chapter 21, Part 6, is amended by
adding the following new sections:

4-21-608. Definitions for §§ 4-21-608 - 4-21-614.

(a) As used in §§ 4-21-608 - 4-21-614:

(1) "Conviction" means a judgment of guilt entered by a court of
competent jurisdiction following a plea of guilty, nolo contendere, or a
verdict or finding of guilt by a judge or jury;

(2) "Criminal history" means an arrest, charge, or conviction for a
criminal offense;

(3) "Felony conviction" means a conviction for any offense
classified as a felony under state or federal law or the law of any other
jurisdiction of the United States;

(4) "Housing provider" means any person, firm, corporation,
partnership, association, or organization that owns, leases, subleases, or
manages residential real property, including single-family homes,
apartments, condominiums, mobile home parks, or any other dwelling unit
available for rent or lease. This includes property managers, landlords,

real estate agents acting on behalf of housing providers, and housing authorities;

(5) "Individualized assessment" means a written evaluation conducted by a housing provider that considers the following factors specific to an applicant for housing:

(A) The nature and severity of the criminal offense;

(B) The time elapsed since the offense or completion of sentence, whichever is later;

(C) The age of the applicant at the time of the offense;

(D) Evidence of rehabilitation, including employment history, educational achievements, community involvement, references, completion of treatment programs, or participation in reentry services;

(E) The relationship between the offense and the safety and welfare of other residents or property; and

(F) Any mitigating circumstances or explanations provided by the applicant;

(6) "Look-back period" means the time period during which a housing provider may consider a criminal conviction when evaluating a housing application, beginning from the date of conviction or the date of release from incarceration or completion of all terms of sentence, including probation or parole, whichever is later, until the date of application;

(7) "Misdemeanor conviction" means a conviction for any offense classified as a misdemeanor under state or federal law or the law of any other jurisdiction of the United States;

(8) "Protected status for housing purposes" means the status of having a criminal conviction that is beyond the applicable look-back period pursuant to § 4-21-610, or for which an individualized assessment has not demonstrated a direct relationship between the conviction and tenant or community safety; and

(9) "Sex offense conviction" means a conviction for any offense that requires registration under the Tennessee Sexual Offender and Violent Sexual Offender Registration, Verification and Tracking Act of 2004, compiled in title 40, chapter 39, part 2, or similar laws of other state or federal jurisdictions.

4-21-609. Prohibited discrimination in housing.

(a) Except as provided in § 4-21-610, it is a discriminatory practice in violation of this chapter for any housing provider to:

(1) Refuse to rent, lease, sell, or otherwise make unavailable any dwelling to any person solely because of that person's criminal history;

(2) Discriminate against any person in the terms, conditions, or privileges of the rental, lease, or sale of a dwelling, or in the provision of services or facilities in connection therewith, solely because of that person's criminal history;

(3) Make, print, or publish, or cause to be made, printed, or published, any notice, statement, or advertisement with respect to the rental, lease, or sale of a dwelling that indicates any preference, limitation, or discrimination based on criminal history;

(4) Represent to any person because of the person's criminal history that any dwelling is not available for inspection, rental, lease, or sale when such dwelling is in fact available;

(5) Include on any housing application any question or inquiry regarding arrests that did not result in conviction; or

(6) Consider any arrest, charge, criminal accusation, or participation in a diversion program that did not result in a conviction when evaluating a housing application.

(b) Nothing in this section prohibits a housing provider from considering criminal history information that is specifically permitted under § 4-21-610.

4-21-610. Permitted consideration of criminal history.

(a) A housing provider may consider a misdemeanor conviction only if the conviction occurred within three (3) years preceding the date of the housing application, beginning from the date of conviction or the date of release from incarceration or completion of all terms of a sentence, including probation or parole, whichever is later.

(b) A housing provider may consider a felony conviction only if the conviction occurred within ten (10) years preceding the date of the housing application, beginning from the date of conviction or the date of release from incarceration or completion of all terms of a sentence, including probation or parole, whichever is later.

(c) Notwithstanding subsections (a) and (b), a housing provider may consider any sex offense conviction without regard to the look-back periods established in this section, if:

(1) The housing provider conducts an individualized assessment as required by subsection (d);

(2) The denial is based on a direct relationship between the sex offense conviction and the safety and welfare of other residents or compliance with applicable housing restrictions for registered sex offenders under state or federal law; and

(3) The housing provider provides written notice of the denial in accordance with § 4-21-611.

(d) If a housing provider intends to deny housing based on a criminal conviction that falls within the applicable look-back period, the housing provider must conduct an individualized assessment. A denial based on criminal history may be justified only if the housing provider determines, based on the individualized assessment, that there is a direct relationship between the criminal conviction and a demonstrable risk to the safety and welfare of other residents or property.

(e) The housing provider bears the burden of demonstrating that any denial based on criminal history is justified under this section and is supported by an individualized assessment.

(f) A housing provider shall not adopt or enforce any blanket policy that automatically disqualifies applicants based on the existence of any criminal conviction without conducting an individualized assessment as required by this section.

4-21-611. Notice requirements.

(a) If a housing provider denies a housing application, refuses to renew a lease, or takes any other adverse action based in whole or in part on an applicant's criminal history, the housing provider shall provide the applicant with written notice within seven (7) business days of the adverse action. The notice must include:

(1) A statement that the adverse action was based in whole or in part on the applicant's criminal history;

(2) A description of each specific conviction considered, including the nature of the offense, the date of conviction, and the jurisdiction of conviction;

(3) A summary of the individualized assessment conducted, including the factors considered and the basis for the determination that the conviction presents a direct risk to safety or property;

(4) A statement of the applicant's right to submit additional information or evidence of rehabilitation, mitigation, or inaccuracy of the criminal history information within fourteen (14) days of receipt of the notice;

(5) A statement of the applicant's right to file a complaint with the commission or pursue legal remedies under § 4-21-613(b); and

(6) Contact information for the commission.

(b) The housing provider shall hold the application open and refrain from renting the dwelling to another applicant for fourteen (14) days following the date that a notice of denial is sent to allow the applicant to submit additional information or documentation. The housing provider shall consider any timely submitted information and issue a final decision in writing within seven (7) business days of receiving such information.

(c) Housing providers shall retain copies of all notices of denial, individualized assessments, and related documentation for a period of not less than three (3) years from the date of the denial.

4-21-612. Education and outreach by department of correction.

(a) The department of correction, division of rehabilitative services, shall develop and implement a comprehensive education and outreach program to inform individuals with criminal convictions of their rights under §§ 4-21-609 - 4-21-613. The program must include:

(1) Educational materials, including pamphlets, videos, and online resources, explaining the protections afforded under §§ 4-21-609 - 4-21-613 and the process for filing complaints if discrimination occurs;

(2) Pre-release training sessions for individuals in state correctional facilities to educate such individuals about fair housing rights, the housing application process, and resources available upon reentry;

(3) A dedicated telephone hotline and online portal for formerly incarcerated individuals to report suspected housing discrimination, obtain information about their rights, and receive referrals to legal assistance or fair housing organizations;

(4) Partnerships with community-based organizations, reentry service providers, public housing authorities, and fair housing advocacy groups to conduct outreach and education; and

(5) Annual reports to the general assembly detailing the number of individuals served, complaints received, and recommendations for improving housing access for individuals with criminal histories.

(b) The department of correction shall coordinate with the commission to ensure consistent messaging and effective enforcement of §§ 4-21-609 - 4-21-613.

(c) Upon release from a state correctional facility, the department of correction shall provide each individual with written materials summarizing their rights under §§ 4-21-609 - 4-21-613 and contact information for the hotline and resources available as described in subsection (a).

4-21-613. Enforcement and remedies.

(a) The commission has jurisdiction to receive, investigate, and adjudicate complaints alleging violations of §§ 4-21-609 - 4-21-611 in accordance with the procedures set forth in this chapter.

(b) Any person aggrieved by a violation of §§ 4-21-609 - 4-21-611 may bring a civil action pursuant to part 3 of this chapter.

(c) The commission may initiate investigations and bring enforcement actions against housing providers who engage in a pattern or practice of violating §§ 4-21-609 - 4-21-611.

4-21-614. Relationship to other laws.

(a) Nothing in §§ 4-21-609 - 4-21-613 preempts or limits a local ordinance, regulation, or policy that provides greater protections against housing discrimination based on criminal history.

(b) Nothing in §§ 4-21-609 - 4-21-613 requires a housing provider to violate any federal or state law or regulation, including, but not limited to, restrictions on housing for registered sex offenders in proximity to schools, childcare facilities, or other protected locations.

SECTION 3. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 4. If any provision of this act or its application to any person or circumstance is held invalid, then the invalidity does not affect other provisions or applications of the act that can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 5. For purposes of promulgating rules and developing the education and outreach program, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect on January 1, 2027, the public welfare requiring it.